

Hovhannisyan	\$300	3.8	\$1,140
Zhang	\$300	1.7	\$510

Plaintiff's showing of additional time (5.7 hours) spent reviewing the Opposition and drafting the Reply is sufficient. The Court finds that the reasonable hourly rate for the attorney who spent this time, Attorney Chipman, who was admitted to the bar in 2019, is \$425. The Court does not award fees for anticipated time. (See Reply Declaration of Kevin Y. Jacobson, ¶¶ 6(b)(vii), 7.) Thus, the sum of **\$2,422.50** (= 5.7 hrs x \$425) shall be added to the above total.

Based on the foregoing, the reasonable amount of Plaintiff's attorneys' fees is **\$8,217.50** (= \$5,795 through filing of motion + \$2,422.50 reply).

3. Adjustment to Lodestar

The lodestar figure can be adjusted up or down based on several factors including: (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; and (4) the skill exhibited by counsel. (*In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556.)

Plaintiff requests a 1.25 multiplier on Plaintiff's attorney's fees based on the fact that counsel obtained an excellent outcome and endured substantial risks posed by this litigation by representing Plaintiff on a contingency fee basis. (Mem., pp. 11-13, citing Jacobson Decl. at ¶¶ 31, 89.)

In Opposition, Defendant requests that the Court deny the multiplier request.

Whether to apply an adjustment to the lodestar is entirely within the Court's discretion. (*PLCM Group, Inc.*, *supra*, 22 Cal.4th at 1095.) The Court does not find that the relevant factors weigh in favor of any adjustment in this routine lemon law case. Thus, Plaintiff's request for a multiplier to the lodestar amount is DENIED.

C. CONCLUSION

Plaintiff is awarded fees in the amount of **\$8,217.50**.

Mayra Aguilar v. General Motors LLC

25CV001964

PLAINTIFF'S MOTION FOR DETERMINATION OF ATTORNEY FEES AND COSTS
UNDER SETTLEMENT AGREEMENT

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff is awarded fees in the amount of \$14,232 and costs in the amount of \$1,061.50 against Defendant. \$15,293.50 is payable within 60 days of entry of this order.

A. PRELIMINARY MATTERS

Plaintiff Mayra Aguilar (“Plaintiff”) moves, pursuant to Code of Civil Procedure section 1794, subdivision (d) and 15 U.S.C. 2310, subdivision (d)(2), for an order determining the amount of her attorney fees, costs, and expenses under the parties’ settlement agreement. Plaintiff seeks \$15,060 in fees and \$1,061.50 in litigation costs and expenses for services rendered and costs incurred since August 2025, as well as a 20% fee enhancement in light of the excellent result achieved and the delay in payment. (Mem., 1:8-10, 9:9-11.)

Defendant does not dispute Plaintiff’s entitlement to her reasonable attorneys’ fees and costs. Defendant disputes the amount of hours spent, hourly rates charged, and costs incurred by Plaintiff’s counsel, contending the Court should award no more than \$7,350 in attorneys’ fees and \$661.50 in costs.

B. COSTS

In order to recover costs, the prevailing party is required to file and serve a memorandum of costs. (Cal. Rules of Court, rule 3.1700(a).) To be recoverable, costs must be reasonable in amount and reasonably necessary to the conduct of litigation. (§ 1033.5, subd. (c)(1)-(3).)

If the items listed in the memorandum of costs appear proper on their face, then the verified statement is *prima facie* evidence that the costs, expenses, and services therein listed were necessarily incurred by that party, and the burden is on the party seeking to tax costs to show that an item is not allowable or is not reasonable or necessary. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266-67; *Perko’s Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 243; *Oak Grove School Dist. v. City Title Ins. Co.* (1963) 217 Cal.App.2d 678, 698-99.)

Although the proper vehicle for challenging costs claimed through a Memorandum of Costs is ordinarily a motion to strike or tax costs, here, Plaintiff’s instant motion specifically seeks an order granting her the costs set forth in her costs memorandum. Thus, because Plaintiff has put her costs at issue on the motion, Defendant’s opposition addressing the amount is properly before the Court.

Here, Plaintiff provided a Memorandum of Costs, attached as Exhibit 11 to the Declaration of Aliaksandra Valitskaya (“Valitskaya Decl.”), that includes \$495.00 in filing and motion fees, \$150.00 in jury fees, \$250 in deposition costs, \$51.63 in service of process fees, and \$114.87 in fees for electronic filing or service.

Defendant disputes the jury fees and deposition costs, arguing that neither was necessary to litigation. (Opp., 8:27-9:8.) As to the jury fees, Defendant argues that a jury was never empaneled and the trial was vacated. True; however, the Court’s procedures require a party requesting a jury trial to post jury fees within one week from the trial setting conference, which, here, was in early 2026 prior to execution of the settlement agreement. Thus, Defendant has failed to meet its burden to show this cost was unnecessary or unreasonable. As to the deposition

costs, Defendant argues that no depositions ever occurred. While this initially raised a doubt in the Court’s mind about the propriety of Plaintiff’s claimed deposition costs, Plaintiff clarifies in Reply that the \$250 was incurred because Defendant’s PMK deposition was set to go forward the day after Defendant made its settlement offer, at which point it was too late to avoid the \$250 charge for cancelling the deposition. (Reply Declaration of Aliaksandra Valitskaya (“Reply Valitskaya Decl.”) ¶ 9.)

Thus, the Court does not find it appropriate to reduce Plaintiff’s claimed costs.

C. ATTORNEYS’ FEE

A court has broad discretion in determining the amount of a reasonable fee, and the award of contractual attorney’s fees is governed by equitable principles. (*Burkhalter Kessler Clement & George LLP v. Hamilton* (2018) 19 Cal.App.5th 38, 43.) The first step is to compute the “lodestar” figure, which is “the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court may then adjust this figure upward or downward based on factors specific to the case in order to fix the fee at the fair market value for the legal services provided. (*Ibid.*) “[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable.” (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 98.)

1. Lodestar Figure – Reasonable Rate

Here, Plaintiff requests fees for a total of two attorneys: \$600/hr for Attorney Timothy Whelan (bar admission in 2008) and \$550/hour for Attorney Aliaksandra Valitskaya (bar admission in 2013). Plaintiff submits evidence to support counsel’s legal experience and the reasonableness of their rates. (See Valitskaya Decl., ¶¶ 10-13, 15; Declaration of Timothy Whelan (“Whelan Decl.”), ¶¶ 5-7.)

The Court finds the requested hourly rates for each attorney to be reasonable within the local community for similar work, considering the submitted evidence regarding each of their levels of experience. (See *PLCM Group, Inc.*, *supra*, 22 Cal.4th at 1095.)

2. Lodestar Figure – Reasonable Hours

Plaintiff argues that counsel spent 26.8 hours litigating the case from August 2025 through the filing of this Motion on July 23, 2026—almost a one year period. Attached to Plaintiff’s counsel’s declaration is a breakdown of hours spent by date, description of work, and hours by the tenth of an hour. (Valitskaya Decl., at Exh. 2.)

Defendant argues that Plaintiff’s counsel overbilled regarding specific tasks. (Opp., 4:6-6:2.)

The Court has reviewed the breakdown of hours provided by Plaintiff and does not find any of the tasks reported therein or the amount of hours spent facially unreasonable. The Court does not agree that the entries identified by Defendant should be reduced, as they reflect fees

incurred that were reasonably necessary to achieve Plaintiff's litigation objectives. As Plaintiff clarifies in Reply, the 26.8 hours presented on this Motion *exclude* administrative tasks performed by support staff. (Reply Valitskaya Decl., ¶ 6.) Thus, the Court finds that 26.8 hours is a reasonable amount of time spent in this action.

Based on the foregoing, the lodestar amount through filing of the Motion is \$11,485.

Plaintiff's showing of additional time (5 hours) spent reviewing the Opposition and drafting the Reply is sufficient and reasonable. (Reply Valitskaya Decl., ¶ 8.) However, the Court does not award fees for anticipated time. (*Ibid.*) Thus, the sum of \$2,750 (= 5 hrs x \$550) shall be added to the above lodestar amount.

Based on the foregoing, the reasonable amount of Plaintiff's attorneys' fees is **\$14,232** (= \$11,482 through filing of motion + \$2,750 reply).

3. Adjustment to Lodestar

The lodestar figure can be adjusted up or down based on several factors including: (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; and (4) the skill exhibited by counsel. (*In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556.)

Plaintiff requests a 20% multiplier on Plaintiff's attorney's fees with little to no application of the law to the facts or circumstances at hand. In Opposition, Defendant requests the Court deny the multiplier request.

Whether to apply an adjustment to the lodestar is entirely within the Court's discretion. (*PLCM Group, Inc.*, *supra*, 22 Cal.4th at 1095.) The Court does not find that the relevant factors weigh in favor of any adjustment in this routine lemon law case. Thus, Plaintiff's request for a multiplier to the lodestar amount is DENIED.

D. CONCLUSION

Plaintiff is awarded fees in the amount of **\$14,232** and costs in the amount of **\$1,061.50**.

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Jessica Fernandez v. SRGA Resort LP et al

25CV002248

DEFENDANT SRGA RESORT, LP'S MOTION FOR LEAVE TO WITHDRAW ITS ANSWER

TENTATIVE RULING: The motion is GRANTED. The Court sets the matter for Case Management Conference on October 23, 2026, at 9:30 in Dept. B. The Case Management Conference currently set for November 6, 2026, at 8:30 in Dept. A is vacated. The Clerk is directed to send notice to the parties.